



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

OCT 6 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8913
(SECOND REVISION)

EXPIRATION DATE: **September 1, 2001**

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Eurotainer S.A.
Paris, France
(U.S. agent: Eurotainer USA, Somerset, NJ)
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of a non-DOT specification IMO Type 5 portable tank for the shipment of the Class 3 materials identified in paragraph 6 below. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.242 and 173.243 in that a non-DOT specification packaging is authorized.
5. BASIS: This exemption is based on the application of Eurotainer SA dated November 28, 1997, submitted in accordance with § 107.105.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Flammable liquid, n.o.s	3	UN1993	I, II, or III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification portable tank, mounted in ISO frame, designed and constructed in accordance with ANF drawings 224767 Rev. E, 224768 Rev. F, other drawings, technical specifications and calculations on file with the Office of Hazardous Materials Exemptions & Approvals (OHMEA), and in compliance with the following:

(1) Code --Conforms with the ASME Code (not Code stamped); IMO Type 5.

(2) Insulation -- None.

(3) Water Capacity (U.S. Gallons) -- 3990.

(4) Material -- French steel standard NFA 36205, designation A 52 FP (carbon steel); Yield strength - 51,524 psi; Tensile strength - 74,020 psi.

(5) Tank Size (inches) -

(outside dia.) X (length) X (thickness)
74.8 228.03 0.362 (minimum after forming)

Head Thickness -- 0.374 (min. after forming)

Weld Joint Efficiency -- 1.0

Corrosion Allowance -- 0.0244 (shell)
0.0547 (head)

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(6) Design Pressure (PSIG) -- 167.5

Note: Design pressure means "maximum allowable working pressure (MAWP)" as used in the ASME Code.

(7) Test Pressure, Minimum (PSIG) -- 251.

(8) Openings -- One(1) -18 inch diameter manhole on the top containing two(2) liquid phase outlets, one(1) gas phase outlet and one safety relief pad; no bottom openings.

(9) Tank surface area (square feet) -- 409

(10) Pressure Relief Devices -- One(1) - 2 ½ inch diameter spring loaded safety relief valve set at 185 psig outboard of and in series with one(1) 2 inch diameter rupture disc set at 185 psig. Relief device capacity is 318,600 SCFH.

(11) G-Loadings: Vertical down 2; Vertical up 1; Longitudinal 2; and Transverse 1.

(12) Maximum Gross Weight (pounds) -- 52,980.

(13) Maximum commodity Weight (pounds) -- 41,000.

(14) Tare Weight (pounds) -- 11,980.

(15) Design Specific Gravity -- 1.23.

b. TESTING -

(1) Each tank must be retested and reinspected once every five years in accordance with the provisions of 49 CFR 173.32(e) as prescribed for DOT Specification 51 portable tanks.

(2) Each tank must be ultrasonically tested for metal thickness prior to being used for the transportation of flammable liquids. The minimum acceptable metal thickness is that specified in paragraph 7 less the corrosion allowance.

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c. OPERATIONAL CONTROLS -

(1) Each tank must be visually inspected prior to each trip to ensure that it has not been damaged on the previous trip;

(2) No product may be shipped that has venting requirements exceeding 318,600 SCFH, or has a specific gravity greater than 1.53. The venting capacity required for each product must be determined by the flow formulas contained in Compressed Gas Association (CGA) pamphlet S-1.2.

(3) Sufficient outage must be provided to prevent the tank from being liquid full at 130°F, or at the temperature corresponding to the pressure relief valve setting if greater.

(4) The internal valves on the liquid and vapor discharge openings must be provided with remote means of automatic closure, both mechanical and thermal, that are installed at the ends of the tank in at least two, diagonally opposite locations. If the discharge connection at the tank is not in the general vicinity of one of the two locations specified above, one additional fusible element must be installed so that heat from a fire in that area will activate the emergency control system. Fusible elements may not have a melting point exceeding 250°F.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. Hydrostatic test certificates for each tank must be maintained by the owner or manufacturer at its principal business office and be made available to any representative of the DOT upon request.

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d. Owners and manufacturers serial numbers must be on file with the OHMEA.

e. MARKING - Each portable tanks must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 8913". Additionally, "DOT-E 11661" must be stamped on the metal manufacturer's data plate on the line which reads "U.S. DOT specification No.".

f. No new construction is authorized.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and cargo vessel.

10. MODAL REQUIREMENTS:

a. A current copy of this exemption must be carried aboard each cargo vessel and motor vehicle used to transport packages covered by this exemption.

b. Rear end protection for the motor vehicle must meet the requirements of §§ 178.340-8(b) and 393.86. Additionally, each portable tank must be secured to the motor vehicle in accordance with the requirements of §§ 393.100 through 393.106.

c. Each portable tank must be secured to the motor vehicle in conformance with the requirements of § 393.100 through 393.106.

d. Portable tanks may not be transported in container-on-flat car (COFC) or trailer-on-flat car (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

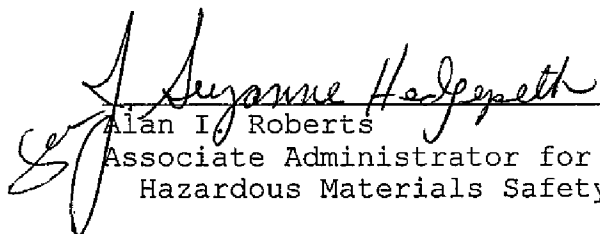
o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:


Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

Dist: FHWA, FRA, USCG
PO: Hedgepeth